

# HOUSE BILL No. 1155

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## DIGEST OF INTRODUCED BILL

**Citations Affected:** IC 5-2-1-2; IC 9-13-2-92; IC 10-10.5-1-3; IC 10-13-8-5; IC 32-25.5-6; IC 35-31.5-2-185.

**Synopsis:** Homeowners association traffic enforcement unit. Authorizes certain homeowners associations to establish a homeowners association traffic enforcement unit (unit). Defines "eligible homeowners association". Establishes qualification requirements for a unit. Provides that an officer of a unit may exercise police powers only upon property owned and maintained by the eligible homeowners association. Provides that additional jurisdiction may be established by agreement with the chief of police of the municipality or sheriff of the county or the appropriate law enforcement agency where the subdivision governed by the eligible homeowners association is located. Provides that the board of the eligible homeowners association may regulate the traffic of all: (1) self-propelled vehicles or devices; (2) bicycles; and (3) pedestrians; on all private streets, roads, paths, and grounds of real property located within the subdivision governed by the eligible homeowners association. Makes conforming amendments.

**Effective:** July 1, 2026.

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**Soliday, Olthoff**

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January 5, 2026, read first time and referred to Committee on Roads and Transportation.

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Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

## HOUSE BILL No. 1155

A BILL FOR AN ACT to amend the Indiana Code concerning property.

*Be it enacted by the General Assembly of the State of Indiana:*

1       SECTION 1. IC 5-2-1-2, AS AMENDED BY P.L.173-2023,  
2       SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
3       JULY 1, 2026]: Sec. 2. For the purposes of this chapter, and unless the  
4       context clearly denotes otherwise, the following definitions apply  
5       throughout this chapter:

6       (1) "Law enforcement officer" means an appointed officer or  
7       employee hired by and on the payroll of the state, any of the  
8       state's political subdivisions, a hospital police department (as  
9       described in IC 16-18-4), a tribal police officer (as described in  
10      IC 5-2-24), **a homeowners association traffic enforcement unit**  
11      **officer employed by an eligible homeowners association (as**  
12      **defined in IC 32-25.5-6-2)**, or a public or private postsecondary  
13      educational institution whose board of trustees has established a  
14      police department under IC 21-17-5-2 or IC 21-39-4-2 who is  
15      granted lawful authority to enforce all or some of the penal laws  
16      of the state of Indiana and who possesses, with respect to those  
17      laws, the power to effect arrests for offenses committed in the



officer's or employee's presence. However, except as otherwise provided in this chapter, the following are expressly excluded from the term "law enforcement officer" for the purposes of this chapter:

(A) A constable.

(B) A special officer whose powers and duties are described in IC 36-8-3-7 or a special deputy whose powers and duties are described in IC 36-8-10-10.6. However, a special officer employed by a consolidated city full time after June 30, 2023, to perform park ranger duties is a law enforcement officer for the purposes of this chapter.

(C) A county police reserve officer who receives compensation for lake patrol duties under IC 36-8-3-20(f)(3).

(D) A conservation reserve officer who receives compensation for lake patrol duties under IC 14-9-8-27.

(E) An employee of the gaming commission whose powers and duties are described in IC 4-32.3-9.

(F) A correctional police officer described in IC 11-8-9.

For purposes of section 12.5 of this chapter, the term includes a police reserve officer (as described in IC 36-8-3-20), even if the police reserve officer works as a volunteer.

(2) "Board" means the law enforcement training board created by this chapter.

(3) "Executive training program" means the police chief executive training program developed by the board under section 9 of this chapter.

(4) "Law enforcement training council" means one (1) of the confederations of law enforcement agencies recognized by the board and organized for the sole purpose of sharing training, instructors, and related resources.

(5) "Training regarding the lawful use of force" includes classroom and skills training in the proper application of hand to hand defensive tactics, use of firearms, and other methods of:

(A) overcoming unlawful resistance; or

(B) countering other action that threatens the safety of the public or a law enforcement officer.

(6) "Hiring or appointing authority" means:

(A) the chief executive officer, board, or other entity of a police department or agency with authority to appoint and hire law enforcement officers; or

(B) the governor, mayor, board, or other entity with the authority to appoint a chief executive officer of a police



1 department or agency.  
 2 (7) "Crisis intervention team" refers to a local coalition with a  
 3 goal of improving the manner in which law enforcement and the  
 4 community respond to crisis situations in which an individual is  
 5 experiencing a mental health or addictive disorder crisis.  
 6 (8) "Law enforcement agency" means a state agency, a political  
 7 subdivision, a hospital police department (as described in  
 8 IC 16-18-4), a tribal law enforcement agency (as described in  
 9 IC 5-2-24), or a public or private postsecondary educational  
 10 institution that employs and has on its payroll a law enforcement  
 11 officer, including individuals described in subdivision (1)(A)  
 12 through (1)(F).

13 SECTION 2. IC 9-13-2-92, AS AMENDED BY P.L.122-2023,  
 14 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 15 JULY 1, 2026]: Sec. 92. (a) "Law enforcement officer", except as  
 16 provided in subsection (b), includes the following:

- 17 (1) A state police officer.
- 18 (2) A city, town, or county police officer.
- 19 (3) A sheriff.
- 20 (4) A county coroner in accordance with IC 36-2-14-4.
- 21 (5) A conservation officer.
- 22 (6) An individual assigned duties and limitations under
- 23 IC 10-11-2-26.
- 24 (7) A member of a consolidated law enforcement department
- 25 established under IC 36-3-1-5.1.
- 26 (8) An excise police officer of the alcohol and tobacco
- 27 commission.
- 28 (9) A gaming control officer employed by the gaming control
- 29 division under IC 4-33-20.
- 30 (10) A hospital police officer employed by a hospital police
- 31 department established under IC 16-18-4.
- 32 **(11) A homeowners association traffic enforcement unit**
- 33 **officer employed by an eligible homeowners association (as**
- 34 **defined in IC 32-25.5-6-2).**

35 The term refers to a law enforcement officer having jurisdiction in  
 36 Indiana, unless the context clearly refers to a law enforcement officer  
 37 from another state or a territory or federal district of the United States.

38 (b) "Law enforcement officer", for purposes of IC 9-30-6 and  
 39 IC 9-30-7, has the meaning set forth in IC 35-31.5-2-185.

40 SECTION 3. IC 10-10.5-1-3, AS AMENDED BY P.L.122-2023,  
 41 SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 42 JULY 1, 2026]: Sec. 3. "Law enforcement officer" means any of the



following:

- (1) A state police officer, enforcement officer of the alcohol and tobacco commission, or conservation officer.
- (2) A county, city, town, or tribal police officer.
- (3) A police officer appointed by a state educational institution under IC 21-39-4 or school corporation under IC 20-26-16.
- (4) A gaming agent under IC 4-33-4.5 or a gaming control officer under IC 4-33-20.
- (5) A hospital police officer employed by a hospital police department established under IC 16-18-4.
- (6) A homeowners association traffic enforcement unit officer employed by an eligible homeowners association (as defined in IC 32-25.5-6-2).**

SECTION 4. IC 10-13-8-5, AS AMENDED BY P.L.122-2023, SECTION 8, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. As used in this chapter, "law enforcement officer" means any of the following:

- (1) A state police officer.
- (2) A county sheriff.
- (3) A county police officer.
- (4) A correctional officer.
- (5) An excise police officer.
- (6) A county police reserve officer.
- (7) A city police officer.
- (8) A city police reserve officer.
- (9) A conservation enforcement officer.
- (10) A town marshal.
- (11) A deputy town marshal.
- (12) A probation officer.
- (13) A state educational institution police officer appointed under IC 21-39-4.
- (14) A gaming agent of the Indiana gaming commission.
- (15) A person employed by a political subdivision (as defined in IC 36-1-2-13) and appointed as a special deputy under IC 36-8-10-10.6.
- (16) A school corporation police officer appointed under IC 20-26-16.
- (17) A police officer of a public or private postsecondary educational institution whose board of trustees has established a police department under IC 21-17-5-2 or IC 21-39-4-2.
- (18) A tribal police officer.
- (19) A hospital police officer employed by a hospital police



department established under IC 16-18-4.

(20) A conservancy district marshal.

(21) A deputy conservancy district marshal.

**(22) A homeowners association traffic enforcement unit officer employed by an eligible homeowners association (as defined in IC 32-25.5-6-2).**

SECTION 5. IC 32-25.5-6 IS ADDED TO THE INDIANA CODE AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

**Chapter 6. Homeowners Association Traffic Enforcement Units**

**Sec. 1. This chapter applies to an eligible homeowners association.**

**Sec. 2. As used in this chapter, "eligible homeowners association" means a homeowners association:**

**(1) established as a nonprofit corporation and subject to either IC 23-17 or this article, as applicable; and**

**(2) with governance authority over a subdivision containing at least:**

**(A) one thousand five hundred (1,500) lots; and**

**(B) fifteen (15) miles of private roads that are owned and maintained by the homeowners association.**

**Sec. 3. (a) The board of an eligible homeowners association may establish a homeowners association traffic enforcement unit under this chapter.**

**(b) If the board of an eligible homeowners association establishes a homeowners association traffic enforcement unit under subsection (a), the eligible homeowners association must notify the:**

**(1) superintendent of the state police department;**

**(2) sheriff of each county in which the subdivision governed by the eligible homeowners association is located (or the chief of police of the consolidated city, if the subdivision is primarily located in a consolidated city); and**

**(3) chief of police of any municipality whose jurisdiction includes the subdivision governed by the eligible homeowners association;**

**of the establishment of the homeowners association traffic enforcement unit.**

**Sec. 4. The board of an eligible homeowners association that establishes a homeowners association traffic enforcement unit under section 3 of this chapter may do the following:**

**(1) Appoint officers to the homeowners association traffic**



enforcement unit who satisfy the requirements set forth in section 5 of this chapter.

(2) Prescribe the duties and direct the conduct of officers appointed to the homeowners association traffic enforcement unit.

(3) Prescribe a distinctive uniform for an officer of the homeowners association traffic enforcement unit.

(4) Designate emergency vehicles to be used by an officer of the homeowners association traffic enforcement unit.

Sec. 5. The board of an eligible homeowners association shall require an individual appointed as an officer for a homeowners association traffic enforcement unit under this chapter to meet at least the following requirements:

(1) The individual must successfully complete at least the pre-basic training course established under IC 5-2-1-9(f).

(2) The individual must successfully complete at least the Tier I minimum basic training and educational requirements adopted by the law enforcement training board under IC 5-2-1-9 as necessary for employment as a law enforcement officer.

Sec. 6. An officer appointed to a homeowners association traffic enforcement unit under this chapter:

(1) must take an appropriate oath of office in a form and manner prescribed by the board of the eligible homeowners association;

(2) serves at the pleasure of the board of the eligible homeowners association; and

(3) performs the duties that the board of the eligible homeowners association assigns.

Sec. 7. (a) An officer appointed to a homeowners association traffic enforcement unit under this chapter has:

(1) general police powers, including the power to arrest, without process, all persons who commit any offense within the view of the officer;

(2) the same common law and statutory powers, privileges, and immunities, including the protections and immunities in IC 34-13-3, as state police officers, sheriffs, and constables. However, an officer of a homeowners association traffic enforcement unit is empowered to serve civil process only to the extent authorized by the board of the eligible homeowners association; and

(3) the duty to enforce and to assist the officials of the eligible



homeowners association in the enforcement of the rules, restrictive covenants, policies, and regulations of the eligible homeowners association.

(b) The board of an eligible homeowners association employing an officer of the homeowners association traffic enforcement unit may expressly forbid the officer from exercising any powers otherwise granted to the officer by law.

(c) An officer of a homeowners association traffic enforcement unit may exercise the powers granted under this section only upon property owned and maintained by the eligible homeowners association, including the streets passing through the subdivision governed by the eligible homeowners association. Additional jurisdiction may be established by agreement with the chief of police of the municipality or sheriff of the county or the appropriate law enforcement agency where the subdivision is located, as applicable, depending on the jurisdiction involved.

(d) If an eligible homeowners association, a board of an eligible homeowners association, the delegated office or offices of a board of an eligible homeowners association, or an individual employed by the eligible homeowners association as an officer of the homeowners association traffic enforcement unit acts in accordance with this chapter or engages in activities related to law enforcement:

(1) the eligible homeowners association, the board of the eligible homeowners association, and the delegated office or offices of the board of the eligible homeowners association have the same common law and statutory immunities granted to the state; and

(2) the individual employed by the eligible homeowners association as an officer of the homeowners association traffic enforcement unit has the same common law and statutory immunities granted to a state police officer, including the protections and immunities in IC 34-13-3.

Sec. 8. (a) This section does not limit or restrict the powers of any other governmental authority having jurisdiction over public streets, roads, alleys, or ways.

(b) The board of the eligible homeowners association may adopt regulations to regulate the traffic of all:

(1) self-propelled vehicles or devices;

(2) bicycles (as defined in IC 9-13-2-14); and

(3) pedestrians;

on all private streets, roads, paths, and grounds of real property





1 located within the subdivision governed by the eligible homeowners  
2 association.

3 (c) Regulations adopted by the board of the eligible homeowners  
4 association applicable to traffic under subsection (b) may include  
5 regulations governing the:

- 6 (1) registration;
- 7 (2) speed;
- 8 (3) operation;
- 9 (4) parking; and
- 10 (5) restrictions on the use;

11 of vehicles or devices described in subsection (b)(1) and (b)(2).

12 (d) The regulations adopted under subsection (b) may prescribe  
13 penalties for the violation of applicable regulations. Penalties for  
14 the regulations adopted under subsection (b) include the:

- 15 (1) imposition of reasonable charges;
- 16 (2) removal and impounding (at the expense of the violator) of  
17 vehicles or devices described in subsection (b)(1) or (b)(2) that  
18 are operated or parked in violation of regulations adopted  
19 under subsection (b); and
- 20 (3) denial of permission to operate vehicles or devices  
21 described in subsection (b)(1) or (b)(2) within the subdivision  
22 governed by the eligible homeowners association.

23 Conduct that constitutes a violation of the rules of the eligible  
24 homeowners association may be punished, after determination of  
25 guilt by lawful procedures, without regard to whether the conduct  
26 also constitutes a civil infraction or an offense under the criminal  
27 laws of any state or of the United States, or whether it might result  
28 in civil liability of the violator to other persons.

29 Sec. 9. (a) This section does not apply if the eligible homeowners  
30 association does not maintain a homeowners association traffic  
31 enforcement unit with at least two (2) officers for the homeowners  
32 association traffic enforcement unit per one thousand (1,000) lots.

33 (b) The board of the eligible homeowners association may  
34 empower one (1) or more officials of the eligible homeowners  
35 association to request the assistance of law enforcement officers of  
36 the:

- 37 (1) state;
- 38 (2) counties;
- 39 (3) cities; and
- 40 (4) towns;

41 when necessary. When any law enforcement officer enters the  
42 subdivision governed by the eligible homeowners association by



1 **virtue of a request under this section, the law enforcement officer**  
 2 **possesses all powers conferred by this chapter upon police officers**  
 3 **appointed by the respective board, in addition to the powers**  
 4 **otherwise conferred upon the law enforcement officers by the laws**  
 5 **of Indiana.**

6 SECTION 6. IC 35-31.5-2-185, AS AMENDED BY P.L.238-2025,  
 7 SECTION 85, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 8 JULY 1, 2026]: Sec. 185. (a) "Law enforcement officer" means:

9 (1) a police officer (including a tribal police officer, a correctional  
 10 police officer, and a hospital police officer employed by a hospital  
 11 police department established under IC 16-18-4), **an officer of a**  
 12 **homeowners association traffic enforcement unit employed by**  
 13 **an eligible homeowners association (as defined in**  
 14 **IC 32-25.5-6-2)**, sheriff, constable, marshal, prosecuting attorney,  
 15 special prosecuting attorney, special deputy prosecuting attorney,  
 16 the securities commissioner, the state fire marshal, the executive  
 17 director of the department of homeland security, or the inspector  
 18 general;

19 (2) a deputy of any of those persons;

20 (3) an investigator for a prosecuting attorney or for the inspector  
 21 general;

22 (4) a conservation officer;

23 (5) an enforcement officer of the alcohol and tobacco  
 24 commission;

25 (6) an enforcement officer of the securities division of the office  
 26 of the secretary of state;

27 (7) a gaming agent employed under IC 4-33-4.5 or a gaming  
 28 control officer employed by the gaming control division under  
 29 IC 4-33-20; or

30 (8) a fire investigator of the department of homeland security.

31 (b) "Law enforcement officer", for purposes of IC 35-42-2-1,  
 32 includes an alcoholic beverage enforcement officer, as set forth in  
 33 IC 35-42-2-1.

34 (c) "Law enforcement officer", for purposes of IC 35-45-15,  
 35 includes a federal enforcement officer, as set forth in IC 35-45-15-3.

36 (d) "Law enforcement officer", for purposes of IC 35-44.1-3-1 and  
 37 IC 35-44.1-3-2, includes a school resource officer (as defined in  
 38 IC 20-26-18.2-1) and a school corporation police officer appointed  
 39 under IC 20-26-16.

40 (e) "Law enforcement officer", for purposes of IC 35-40.5, has the  
 41 meaning set forth in IC 35-40.5-1-1.

